

		the parties' arbitration agreement. As set forth below, the petition is GRANTED. The court is required to order arbitration if it determines an agreement to arbitrate the controversy exists and a party to the agreement refuses to arbitrate that controversy, unless a valid defense to enforcement exists. (Code Civ. Proc., § 1281.2, subds. (a)-(c).) The moving party bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (<i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) Here, Petitioners produced evidence Respondent agreed to binding arbitration in the parties' Residential Purchase Agreement and Joint Escrow Instructions (RPA) as to "any dispute or claim in Law or equity arising between them out of this Agreement or any resulting transaction" (Petition, Ex. 1 ¶ 28(A).) This dispute arises out of the RPA. Petitioners demanded arbitration, but Respondent refused. (Verified Petition ¶¶ 7-9.) Respondent failed to file an opposition disputing enforceability of the arbitration agreement. The court therefore GRANTS the petition and Respondent is hereby ordered to submit to arbitration regarding Petitioners' claims consistent with the parties' arbitration agreement. Given these proceedings were commenced simply as a petition seeking to compel arbitration, the proceedings are now complete given Respondent has been ordered to arbitrate the dispute. A new petition will be required for any future relief, such as a petition to confirm, vacate, or correct any future arbitration award. Petitioners' counsel is ordered to give notice of this ruling.
8.	Rodriguez vs. Progressive Select Insurance Company 2026-01546894	Before the court is the petition of petitioner Jeison Snider Serna Rodriguez (Petitioner) to compel respondent Blue Hill Specialty Insurance Company, erroneously sued as Progressive Select Insurance Company (Respondent), to submit to arbitration on Petitioner's underinsured motorist claim under Petitioner's insurance policy with Respondent. Petitioner's petition is defective and deficient in multiple regards. First, Petitioner fails to establish the existence of an arbitration agreement between the parties or its terms. "The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the

		burden of proving by a preponderance of the evidence any fact necessary to its defense.” (<i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972; <i>Green Tree Financial Corp.-Alabama v. Randolph</i> (2000) 531 U.S. 79, 91-92.) Here, Petitioner cites Insurance Code §11580.2, subdivision (f), which sets forth the requirement that an automobile insurance policy or an endorsement to the policy must provide for arbitration of uninsured or underinsured motorist claims. The terms of the arbitration agreement, however, are not set forth and the policy is not attached. Moreover, California Rules of Court, rule 3.1330 requires any petition to compel contractual arbitration must state the provisions of the written agreement and the paragraph that provides for arbitration, and the provision must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference. Here, the terms of the parties’ arbitration agreement are not alleged verbatim in the petition and a copy is not attached. Although Insurance Code section 11580.2 requires all automobile insurance policies to include a provision for arbitration of uninsured or underinsured motorist disputes, that does not excuse compliance with these requirements. Moreover, the law permits the parties to agree to arbitrate more than the statutory minimum issues as well as other terms of the arbitration, and the court cannot determine the scope of the arbitration without a copy of the agreement. Second, section 11580.2, subdivision (f), requires any petition for arbitration to contain a declaration, under penalty of perjury, stating whether (i) the insured has a workers' compensation claim; (ii) the claim has proceeded to findings and award or settlement on all issues reasonably contemplated to be determined in that claim; and (iii) if not, what reasons amounting to good cause are grounds for the arbitration to proceed immediately. Petitioner failed to provide any such declaration. Finally, Petitioner failed to properly serve the petition. Code of Civil Procedure section 1290.4 requires a petition to compel arbitration to be served in the same manner as a summons and complaint unless the parties’ agreement provides for an alternative means of service. Here, Petitioner did not provide a copy of the parties’ agreement and therefore failed to show they agreed to any means of
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		service other than personal service. The proof of service Petitioner filed shows service was made by email. That is not sufficient. Respondent, however, has waived or corrected these deficiencies. Respondent states it does not oppose being ordered to arbitration. Respondent included as part of one of its exhibits to the opposition a declaration Petitioner's counsel apparently served on Respondent regarding the non-existence of any worker's compensation claim. And Respondent filed an opposition without any objection to the method of service, thereby waiving the service defect. Accordingly, based on Respondent's agreement and willingness to submit the claim to arbitration, the petition is GRANTED and Respondent, along with Petitioner, are ordered to submit their underinsured motorist dispute to arbitration in accordance with Plaintiff's insurance policy with Respondent. Petitioner's petition also includes a request for attorney fees, but fails to cite any statutory or contractual basis for an attorney fee award. Moreover, to the extent there was any legal basis for an award of attorney fees, Petitioner failed to present in evidence to establish an amount to be awarded, such as a declaration by counsel or billing statements. Accordingly, the request for attorney fees is DENIED. Petitioner's counsel is ordered to give notice of this ruling.
9.	<i>Buchalter, A Professional Corporation vs. Clark</i> 2025-01529125	OFF CALENDAR based on request for dismissal filed on May 19, 2026.
10.	<i>Michael A Plaia vs. Alina V Plaia</i> 2020-01175527	Before the court is the motion of judgment creditor Michael A. Plaia (Creditor) to compel further responses from judgment debtor Alina V. Plaia (Debtor) to Creditor's requests for production of documents, set one. As more full set forth below, the motion is GRANTED. As an initial matter, the court notes the proof of service for the motion lists an incorrect mailing address for Debtor (92 Brandisi versus 92 Brindisis). The motion, however, also was served on Debtor by email pursuant to an email service agreement between the parties, and at the same email address for Debtor as listed in the court's records. Moreover, Debtor filed an untimely opposition without